

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: August 6, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to pay for their own court reporter, the appropriate form must be submitted: <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV452830	Elie Hernandez v. Pacific Underground Construction, Inc. et al.	Click LINE 1 or scroll down for ruling.
Line 2	25CV456985	Katelyn Lanini v. Heidi Britt et al.	Plaintiff's motion to deem admitted requests for admission, set two, against defendant American Tree Medics Inc. (Code Civ. Proc., § 2033.280.) Notice is proper and the motion is unopposed. Defendant made no response to the requests for admission. On good cause shown, the motion is GRANTED and the requests for admission are deemed admitted. The court finds sanctions appropriate in the amount of \$555 (\$60 filing fee plus one hour at \$495/hour). Plaintiff to submit proposed order listing verbatim the admissions to be admitted.
Line 3	25CV470556	Wells Fargo Bank, N.A. v. Norberto Carlos, an individual	Click LINE 3 or scroll down for ruling.
Line 4	25CV472404	Theerapong Surinsuk v. Volkswagen Group of America, Inc., a corporation et al.	Defendant's motion to compel discovery. Plaintiff dismissed the entire action before the hearing on the motion. The matter is OFF CALENDAR.

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Line 5	25CV472404	Theerapong Surinsuk v. Volkswagen Group of America, Inc., a corporation et al.	Defendant's motion to compel discovery. Plaintiff dismissed the entire action before the hearing on the motion. The matter is OFF CALENDAR.
Line 6	25CV472404	Theerapong Surinsuk v. Volkswagen Group of America, Inc., a corporation et al.	Defendant's motion to compel discovery. Plaintiff dismissed the entire action before the hearing on the motion. The matter is OFF CALENDAR.
Line 7	25CV479081	Meenakshi Patil v. Amaresh Malipatil et al.	Click LINE 7 or scroll down for ruling.
Line 8	25CV480254	Services, Immigrant Rights & Education Network et al. v. Paul Joseph et al.	Click LINE 8 or scroll down for ruling.

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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	25CV480254	Services, Immigrant Rights & Education Network et al. v. Paul Joseph et al.	Application of Jonathan I. Kravis to appear <i>pro hac vice</i> for defendant City of San Jose. No objection filed. Good cause appearing, the application is GRANTED. Moving party to submit proposed order.

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Calendar Line 1

Case Name: Elie Hernandez v. Pacific Underground Construction, Inc. et al.

Case No.: 24CV452830

At issue is defendant Pacific Underground Construction, Inc.'s petition to compel arbitration. Notice is proper and the petition is opposed by plaintiff Elie Hernandez.

According to the original and still operative complaint, Plaintiff began working for Defendant on May 1, 2019 as a non-exempt hourly employee. (Complaint at ¶¶ 9, 10.) Plaintiff notified Defendant in April 2024 that he intended to take paternity leave under the California Family Rights Act (CFRA) in anticipation of the impending birth of his child. (*Id.* at ¶ 11.) He planned to take leave from May 1, 2024, through June 24, 2024. (*Id.* at ¶ 13.) Upon his return to work on June 24, 2024, Plaintiff was told not to come in because it did not have any work for him. Defendant never called Plaintiff to return to work. (*Id.* at ¶¶ 14, 15.) When Plaintiff inquired with Defendant a few weeks later, Defendant's employment department told him that Defendant had terminated his employment. (*Id.* at ¶ 18.) Plaintiff alleges that Defendant terminated him because he exercised his right to paternity leave under the CFRA. (*Id.* at ¶ 19.)

Plaintiff also alleges he was not compensated for all hours worked and was forced to miss meal and rest breaks. (Complaint at ¶¶ 20, 21.) He was required to use his cell phone for business purposes, and was not reimbursed for the use of personal property. (*Id.* at ¶ 23.) Plaintiff alleges he was not issued a final paycheck with all wages due within the statutory period after he was terminated. (*Id.* at ¶ 24.)

Plaintiff filed the Complaint in November 2024. The Complaint alleges 10 causes of action: (1) retaliation in violation of CFRA; (2) interference in violation of CFRA; (3) retaliation in violation of the Fair Employment and Housing Act (FEHA); (4) wrongful termination in violation of public policy; (5) failure to pay minimum wage; (6) failure to provide meal periods; (7) failure to provide rest breaks; (8) failure to issue accurate and itemized wage statements; (9) failure to pay wages due at separation; waiting time penalties; and (10) failure to indemnify. Defendant removed this case to federal court in January 2025. It was remanded to this court in August 2025.

Defendant petitions to compel arbitration of Plaintiff's claims under two collective bargaining agreements that govern the timeframe of Plaintiff's claims: (1) AGC/Laborers Master Agreement 2018-2023; and (2) AGC/Laborers Master Agreement 2022-2027 (collectively, CBAs). Having considered the arbitration provisions contained in the CBAs, the court will grant in part and deny in part the petition to compel arbitration.

OBJECTIONS TO EVIDENCE

Plaintiff objects to the Declaration of Dean Romeo. The court rules on these objections as follows:

Objection Nos. 1 & 2 are **OVERRULED**. Plaintiff does not dispute that he was employed by Defendant. (Declaration of Elie Hernandez at ¶ 2.) Plaintiff also acknowledges that he was a member of the Laborers' International Union of North America, Local 270. (*Id.* at ¶ 6.)

Objection No. 3 is SUSTAINED in so far as Defendant mischaracterizes Exhibit B, but otherwise OVERRULED because “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 (*Gamboa*).) Moreover, “the custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in the company’s files.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 756, 758 (*Iyere*).)

Objection No. 4 is OVERRULED because on a petition to compel arbitration, the Defendant meets its burden by attaching the agreement to the petition as it has done so here. (*Gamboa, supra*, 72 Cal.App.5th at p. 165.)

Objection No. 5 is OVERRULED. Mr. Romeo has been the Chief Financial Officer for 25 years and states that he has “personal knowledge of and access to employee personnel files, employment records, human resources information system, and employee payroll records, which are maintained by Pacific Underground Construction, Inc. in the ordinary course of business. I also have personal knowledge about Pacific Underground Construction Inc.’s general business structure, business operations and employees.” (Declaration of Dean Romeo at ¶ 4.)

Plaintiff also objects to the Declaration of Karin M. Cogbill. The court rules on these objections as follows:

Objection No. 1 is OVERRULED. Secondary evidence is admissible in this instance because there is no genuine dispute that the emails were sent or that Defendant requested Plaintiff to comply with the grievance procedure. The admission of counsel’s declaration is not unfair. (Evid. Code, § 1521.)

Objection No. 2 is OVERRULED. Counsel’s declaration is based on her personal knowledge and reference to the papers filed with respect to the motion to remand.

ANALYSIS

The Federal Arbitration Act (FAA) controls because defendant is engaged in interstate commerce. The basic coverage provision of the FAA “makes the law applicable to contracts evidencing a transaction ‘involving commerce’ (9 U.S.C. § 2), which language reflects that Congress intended the law’s coverage to extend to the full reach of its commerce clause power.” (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted].) “Congress’ Commerce Clause power ‘may be exercised in individual cases without showing any specific effect upon interstate commerce’ if in the aggregate the economic activity in question would represent ‘a general practice . . . subject to federal control.’” (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56-57, quoting *Mandeville Island Farms, Inc. v. American Crystal Sugar Co.* (1948) 334 U.S. 219, 236.)

Defendant is based in Northern California and “receive[s] equipment and materials for underground pipeline construction and maintenance from across the United States and internationally.” (Romeo Decl. at ¶ 8.) The purchase of supplies originating from outside

California satisfies the interstate commerce requirement. (*Scott v. Yoo* (2016) 248 Cal.App.4th 392, 401-402.)

Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093, citations omitted.)

Code of Civil Procedure section 1281.2 provides: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere supra*, 87 Cal.App.5th at p. 755; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

There is a Valid Agreement to Arbitrate

"A union representative may agree on an employee's behalf as part of the collective bargaining process to require the employee to arbitrate controversies relating to an interpretation or enforcement of a CBA." (*Cortez v. Doty Bros. Equipment Co.* (2017) 15 Cal.App.5th 1, 11 (*Cortez*), citing *14 Penn Plaza LLC v. Pyett* (2009) 556 U.S. 247, 258 ["Nothing in the law suggests a distinction between the status of arbitration agreements signed by an individual employee and those agreed to by a union representative."].) Defendant has met its burden of proving the existence of an agreement to arbitrate by attaching the CBAs containing the arbitration provisions to its petition. (*Gamboa, supra*, 72 Cal.App.5th 158 at p. 165 ["The moving party 'can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature."].)

Both collective bargaining agreements provide for arbitration and are not limited grievance procedures. Under both agreements, if any dispute is not resolved between the union and individual employer within three days, "the matter may be submitted by either party to a permanent Board of Adjustment created for the settlement of such disputes." (Romeo Decl., Ex. A at § 9, ¶ 3; Ex. B at § 9, ¶ 3.) The Board of Adjustments is composed of two members named by the union, two members named by the association, and an "Impartial Arbitrator." (*Id.*, Ex. A at § 9, ¶ 4; Ex. B at § 9, ¶ 4.) The arbitrator is selected by the parties and is tasked with issuing a final and binding decision if the panel is unable to reach a majority vote. (*Id.*, Ex. A at § 9, ¶¶ 4, 5(c) & (d); Ex. B at § 9, ¶¶ 4, 5(c) & (d).)

The lack of Plaintiff's signature does not affect the CBAs' enforceability. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 542 ["The absence of Mendez's signature on the second collective bargaining agreement is inconsequential. Mendez does not deny that she was a member of the union."].) "[A] member of a bargaining unit is bound by the terms of a valid collective bargaining agreement, though he is not formally a party to it and may not even belong to the union which negotiated it." (*Florio v. City of Ontario* (2005) 130 Cal.App.4th 1462, 1466.) It is undisputed that Plaintiff was a member of the union. (Hernandez Decl. at ¶ 6.) Plaintiff is bound by the terms of CBAs, including the arbitration provisions.

The Scope of the CBAs Encompasses Only Some of Plaintiff's Claims

“When a CBA includes an arbitration provision, contractual matters under a CBA are presumed arbitrable; that is, arbitration must be granted as long as the CBA is reasonably susceptible to an interpretation in favor of arbitration. [¶] However, the presumption of arbitration in a CBA does not apply to statutory violations . . . Thus, although a union representative negotiating in good faith may waive the employee’s right to pursue in a judicial forum an action for a statutorily protected right . . . the United States Supreme Court has made clear that waiver of the right to prosecute a statutory violation in a judicial forum is only effective if it is explicit, “ ‘clear and unmistakable.’ ” ” (*Cortez, supra*, 15 Cal.App.5th at pp. 11-12, internal citations omitted.)

“ ‘In determining whether there has been a sufficiently explicit waiver, the courts look to the generality of the arbitration clause, explicit incorporation of statutory requirements, and the inclusion of specific [statutes]. The test is whether a collective bargaining agreement makes compliance with the statute a contractual commitment subject to the arbitration clause.’ ” (*Wilson-Davis v. SSP America, Inc.* (2021) 62 Cal.App.5th 1080, 1094 [quoting *Vasquez v. Superior Court* (2000) 80 Cal.App.4th 430, 434].) “Broad, general language is not sufficient to meet the level of clarity required to effect a waiver in a [collective bargaining agreement]. In the collective bargaining context, the parties ‘must be particularly clear’ about their intent to arbitrate statutory claims.” (*Carson v. Giant Food, Inc.* (1999) 175 F.3d 325, 331.)

Here, the CBAs state the grievance procedure applies to any “dispute concerning the interpretation or application of this Agreement.” (Romeo Decl., Ex. A at § 9; Ex. B at § 9.) Both CBAs also state, “[i]n addition to disputes concerning the interpretation or application of this Agreement, all claims and claims for associated penalties arising under the federal Fair Labor Standards Act, the California Labor Code, and Wage Order 16, will be resolved through procedures set forth in this Section 9; such claims may not be brought in a court of law or before any administrative agency such as the California Labor Commissioner.” (Romeo Decl., Ex. A at § 9, ¶ 20; Ex. B at § 9, ¶ 20.) And the 2022-2027 CBA provides that “all employee disputes concerning violations of, or arising under . . . the California Labor Code Sections identified in California Labor Code Section 2699.5, as amended, the California Private Attorney General Act (Labor Code Section 2698, et. seq.), and a federal, state, and local law concerning wage-hour requirements, wage payment, and meal or rest periods, including claims arising under the Fair Labor Standards Act (hereinafter ‘Statutory Dispute’ or ‘Statutory Disputes’) shall be subject to and must be processed by the employee pursuant to the procedures set forth in Section 9 as the sole and exclusive remedy.” (*Id.*, Ex. B at § 9, ¶ 21.)

The first through fourth causes of action are not within the scope of the arbitration provisions in the CBAs. The CBAs make no reference to claims arising under CFRA, FEHA, or wrongful termination. As noted by the federal court on the order granting the motion to remand, Plaintiff's wrongful termination claim derives from California public policy under CFRA and FEHA and not any grievance provisions of the CBA. (Order Granting Motion to Remand at p. 12:21-28.) Plaintiff's reference to section 3 of the CBAs concerning Employment and Discharge and requiring the parties to comply with FEHA does not function as an explicit waiver of any such claim to arbitration. (See Reply at p. 5:8-13.) General references to state and local law are insufficient. The first through fourth causes of action are not clearly and unmistakably subject to arbitration under the arbitration provisions of either CBA.

The fifth through 10th causes of action are within the scope of the arbitration provisions in the CBAs. As already summarized, the CBAs expressly refer to the California Labor Code. Plaintiff's fifth through 10th causes of action arise under the California Labor Code. Plaintiff sues for the failure to pay minimum wage; the failure to provide meal periods; the failure to provide rest breaks; the failure to issue accurate and itemized wage statements; the failure to pay wages due at separation; waiting time penalties; and the failure to indemnify. To the extent Plaintiff argues the ninth and 10th causes of action are not covered by Wage Order 16, they are nevertheless brought under the Labor Code and are derivative of his other wage and hour claims. Labor Code sections 201 to 203, asserted in the ninth cause of action, are identified in Labor Code section 2699.5. *Cortez* is distinguishable because the CBA in *Cortez* did not mention the Labor Code and the claims were evaluated under Wage Order 16. (*Cortez, supra*, 15 Cal.App.5th at p. 14.) Because the CBAs in this case include a clear and unmistakable judicial forum waiver for claims arising under the California Labor Code, Plaintiff's fifth through 10th causes of action are subject to arbitration.

The petition to compel arbitration is granted as to the fifth through 10th causes of action, and denied as to the first through fourth causes of action. To avoid the risk of inconsistent rulings, the court stays this action in its entirety pending the outcome of arbitration. (Code. Civ. Proc., § 1281.4; 9 U.S.C. § 3.)

CONCLUSION

The motion to compel arbitration is GRANTED IN PART as to the fifth through 10th causes of action and DENIED IN PART as to the first through fourth causes of action. This action is STAYED in its entirety pending the outcome of arbitration.

The court will hold a case status review regarding arbitration on July 22, 2027, at 11:00 a.m. in Department 10.

The court will prepare the order.

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Calendar Line 3

Case Name: Wells Fargo Bank, N.A. v. Norberto Carlos

Case No.: 25CV470556

At issue is plaintiff Wells Fargo Bank, N.A.'s motion for summary judgment in this credit card collections action. Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.)

Summary judgment is appropriate when there is no triable issue of material fact as to one or more elements of a particular cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (o)(1).) The court identifies the causes of action framed by the pleadings. The court then determines whether the plaintiff as the moving party has carried its burden to show that there is no defense to any cause of action by proving each element of the causes of action. (Code Civ. Proc., § 437c, subd. (p)(1).) If the plaintiff makes that prima facie showing, the burden of production shifts to the defendant to show that a triable issue of one or more material facts exists as to the causes of action, or a defense thereto. (*Ibid.*) "The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (*Ibid.*)

The complaint alleges two causes of action against defendant: breach of written contract and breach of implied contract. Both causes of action have the same elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230.)

Plaintiff's motion is supported by evidence showing that defendant obtained a credit card account from plaintiff that was subject to a customer agreement contract; defendant accepted the terms of that contract by using the credit card; plaintiff extended credit and performed all its obligations under the contract; defendant breached the contract by not making all required payments; and plaintiff suffered damages of \$28,682.82 (i.e., the balance due on the credit card). Plaintiff satisfied its initial burden as to both causes of action. Defendant did not oppose the motion. Plaintiff is entitled to summary judgment.

Plaintiff filed a memorandum of costs in January 2026, seeking \$960 in costs. Defendant forfeited any challenge to the amount of those costs by not timely filing a motion to tax costs. (Cal. Rules of Court, rule 3.1700(b)(1).)

Plaintiff's motion for summary judgment is GRANTED. Plaintiff is ordered to submit a proposed judgment indicating damages of \$28,682.82 in damages and \$960 in costs. The court will prepare the order.

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Calendar Line 7

Case Name: Meenakshi Patil v. Amaresh Malipatil et al.

Case No.: 25CV479081

This lawsuit arises from a dispute between married spouses, plaintiff Meena Patil and defendant Amaresh Malipatil, over real property located in San Jose, California and funds deposited in one or more of the parties' joint bank accounts.

The original complaint was filed in October 2025. It alleged that Plaintiff was a resident of India and that Defendant was domiciled in Santa Clara County. It further alleged that Defendant had committed fraud by concealing facts "material to the matrimonial relationship and to the disbursement of funds to the parties during the dissolution proceeding." (Complaint, ¶ 20.) The complaint did not state where the dissolution proceeding was taking place, or whether it had been completed. The complaint did not allege that the parties' marital relationship had ended.

The operative first amended complaint (FAC), filed in March 2026, alleges four causes of action: (1) fraud; (2) conversion; (3) breach of fiduciary duty; and (4) accounting. There are no attached exhibits. The FAC alleges that Plaintiff is a United States Citizen residing in India, that Defendant is domiciled in Santa Clara County, and that Defendant is currently "the spouse of Plaintiff." (FAC, ¶¶ 1-2.) The FAC again alleges that Defendant committed fraud by concealing facts "material to the matrimonial relationship and to the disbursement of funds to the parties during the dissolution proceeding." The FAC provides no further information on the dissolution proceeding. (FAC, ¶ 23.) Among other things, the FAC seeks the imposition of a constructive trust over alleged community property. (FAC, ¶ 27.)

At issue is Defendant's demurrer to the FAC, opposed by Plaintiff. The court will stay this matter pending resolution of the proceedings in India.

REQUEST FOR JUDICIAL NOTICE

"Judicial notice may not be taken of any matter unless authorized or required by law." (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to "[furnish] the court with sufficient information to enable it to take judicial notice of the matter."

In support of the demurrer, Defendant has submitted a request for judicial notice of six documents, attached as exhibits A-F to the request. The only specific basis stated for taking notice of any document is Evidence Code section 452, subdivision (d) (court records). The court takes judicial notice of exhibit A, a copy of the original complaint, under Evidence Code section 452, subdivision (d). The court takes judicial notice of exhibits C through E, copies of Indian court records, under Evidence Code section 452, subdivision (h). (*TSMC North America v. Semiconductor Manufacturing International Corp.* (2008) 161 Cal.App.4th 581, 597, fn. 7 [taking judicial notice of Beijing court's jurisdictional ruling "and the parties' related filings" pursuant to the same]; *In re Marriage of Taschen* (2005) 134 Cal.App.4th 681, 688, fn. 3 [taking judicial notice of German court judgment pursuant to the same].) While the court

takes judicial notice of these four exhibits, the court does not take notice of the truth of any matters stated therein. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 81 [truth of contents of court records cannot be judicially noticed].) The request is denied as to exhibits B and F. Judicial notice of exhibit B (marriage certificate) is denied as unnecessary because the FAC admits the parties are currently married. Judicial notice of exhibit F (copy of mail addressed to defendant) is denied because the document is neither a court record nor proof of Defendant's residency.

The court did not consider the Plaintiff's objection to the request for judicial notice or Defendant's reply. There is no authority for the filing of separate briefs in support of or in opposition to a request for judicial notice.

LEGAL STANDARD FOR DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions, or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that "[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded." The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) ["Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses."].)

Where a demurrer is to an amended complaint or cross-complaint, the court "may consider the factual allegations of prior complaints, which a plaintiff may not discard or avoid by making contradictory averments, in a superseding, amended pleading." (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034, internal quotations omitted (*Berg & Berg*); see also *Doe v. United States Youth Soccer Assoc.* (2017) 8 Cal.App.5th 1118, 1122.)

The court cannot consider extrinsic evidence when ruling on a demurrer. That includes declarations. The court has considered the declaration from counsel for Defendant only to the extent that it discusses required meet and confer efforts, and the court has not considered the attached exhibits. Finally, "points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before." (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

Defendant demurs to all causes of action in the FAC on the grounds that the court lacks subject matter jurisdiction; that there is another action pending (the India court actions); that all causes of action are time-barred by Code of Civil Procedure section 338; and that all causes of action fail to state sufficient facts or support the request for punitive damages. (Notice of Demurrer and Demurrer at p. 1:18-25.)

Subject Matter Jurisdiction

Defendant demurs to the entire FAC and each cause of action on the ground that this court lacks subject matter jurisdiction because all claims would have to be heard by the Family division of this court. Lack of subject matter jurisdiction means a total absence of power by a court to hear or determine a case. (*Cummings v. Stanley* (2009) 177 Cal.App.4th 493, 503 citing *Totten v. Hill* (2007) 154 Cal.App.4th 40, 46.) “The principle of ‘subject matter jurisdiction’ relates to the inherent authority of the court involved to deal with the case or matter before it.” (*Harnedy v. Whitty* (2003) 110 Cal.App.4th 1333, 1343-44 (*Harnedy*)). Typically, a California court lacks subject matter jurisdiction only when the action arises from claims where federal courts exercise exclusive jurisdiction. (E.g., *Lockwood v. Sheppard, Mullin, Richter & Hampton* (2009) 173, Cal.App.4th 675, 683-684 [patent cases]; *Ross v. Universal Studios Credit Union* (2002) 95 Cal.App.4th 537, 542 [bankruptcy proceedings].)

There is no separate subject matter jurisdiction between the different departments of a superior court. (*B.F. v. Super. Ct.* (2012) 207 Cal.App.4th 621, 628 [the distinction between a juvenile department and a probate department is administrative and does not change subject matter jurisdiction].) The division of the superior court into departments is a matter of convenience and does not impact the subject matter jurisdiction of the court as a whole. (*Ibid*; *Estate of Bowles* (2008) 169 Cal.App.4th 684, 695 (*Bowles*)). The question of whether an action has been filed in the wrong department does not implicate a court’s power to hear the case and act. (*Bowles, supra*, 169 Cal.App.4th at p. 695; see also *Harnedy v. Whitty, supra*, 110 Cal.App.4th at p. 1344 [“[A] nonprobate department does not lack fundamental jurisdiction over a probate matter.”].)

California courts have subject matter jurisdiction over marital dissolution proceedings. The court has subject matter jurisdiction.

Statute of Limitations

Defendant contends that the FAC and each cause of action is time-barred under Code of Civil Procedure section 338.

“A complaint showing on its face the cause of action is barred by the statute of limitations is subject to general demurrer.” (*Iverson, Yoakum, Papiano & Hatch v. Berwald* (1999) 76 Cal.App.4th 990, 995.) The running of the statute must appear clearly and affirmatively from the dates alleged—it is not enough that the complaint might be barred. (*Committee for Green Foothills v. Santa Clara County Board of Supervisors* (2010) 48 Cal.4th 32, 42.) “Generally, the limitations period starts running when the last element of a cause of action is complete.” (*NBCUniversal Media, LLC v. Super. Ct.* (2014) 225 Cal.App.4th 1222, 1231.)

The statute of limitations for fraud is three years. (Code Civ. Proc., § 338, subd. (d).) Fraud does not accrue “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (*Id.*) Breach of fiduciary duty is also subject to a three-year statute of limitations when it is based on alleged fraud. (*American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1479.) Conversion is also subject to a three-year statute of limitations. (*AmerUS Life Ins. Co. v. Bank of America, N.A.* (2006) 143 Cal.App.4th 631, 639 [Code Civ. Proc., § 338, subd. (c), applies to claims for the conversion of personal property].) And “when the defendant in a conversion action fraudulently conceals the relevant facts or where the defendant fails to disclose such facts in violation of his or her fiduciary duty to the

plaintiff[.] ‘the statute of limitations does not commence to run until the aggrieved party discovers or ought to have discovered the existence of the cause of action for conversion.’” (*Id.* at p. 639.)

The FAC alleges that Plaintiff did not learn of the alleged misconduct forming the basis for this lawsuit until December 2022. (FAC at ¶¶ 16-20, 24-25, 31, 38.) Other dates alleged in the complaint do not clearly and affirmatively establish any earlier accrual of the causes of action. Because the original complaint was filed within three years of December 2022, none of the causes of action are time-barred on their face. Plaintiff was not required to plead delayed discovery. (See *Mills v. Forestex Co.* (2003) 108 Cal App 4th 625, 641 [“When a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory.”].) And the fourth cause of action for accounting is typically subject to a four-year statute of limitations. (Code Civ. Proc., § 343.) Even if the accounting claim is deemed to arise from the fraud cause of action, the demurrer would not be sustained on this ground.

The demurrer to the FAC and each cause of action on the ground that they are time-barred under the three-year statute of limitation in Code of Civil Procedure section 338 is overruled.

Another Action Pending – Plea in Abatement

A party may demur on the ground “[t]here is another action pending between the same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).) A demurrer on this ground is also known as a plea in abatement. (*County of Santa Clara v. Escobar* (2016) 244 Cal.App.4th 555, 564.) “To ‘abate’ a right of action is to suspend its prosecution due to some impediment that, without defeating the underlying cause of action, prevents the present maintenance of [the] suit.” (*Ibid.*, italics omitted.) A demurrer on this statutory ground is a request to suspend or stay a lawsuit based on the pendency of another lawsuit. (*Ibid.*)

This ground for demurrer arises from the prohibition of splitting a cause of action as defined by the primary right theory. (*Hamilton v. Asbestos Corp.* (2000) 22 Cal.4th 1127, 1145-1147.) “The primary right theory is a theory of code pleading that has long been followed in California.” (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 681 (*Crowley*).) “It provides that a ‘cause of action’ is [composed] of a ‘primary right’ of the plaintiff, a corresponding ‘primary duty’ of the defendant, and a wrongful act by the defendant constituting a breach of that duty.” (*Ibid.*) “The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a single cause of action.” (*Ibid.*) A plaintiff may not “divide a primary right and enforce it in two suits.” (*Ibid.*) “The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement (Code Civ. Proc., § 430.10, subd. (c); [citation]); or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata.” (*Crowley, supra*, 8 Cal.4th at p. 682.)

No Mandatory Abatement

A court must abate a second action when the demurring party shows: “(1) That both suits are predicated upon the same cause of action; (2) that both suits are pending in the same jurisdiction; and (3) that both suits are contested by the same parties.” (*Conservatorship of Pacheco* (1990) 224 Cal.App.3d 171, 176. “Where a demurrer is sustained on the ground of another action pending, the proper order is not a dismissal, but abatement of further proceedings pending termination of the first action.” (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 788 (*Plant Insulation*)). “In determining whether the causes of action are the same for purposes of pleas in abatement, the rule is that such a plea may be maintained only where a judgment in the first action would be a complete bar to the second action.” (*Id.* at pp. 787-788.) “Abatement of the second action is a matter of right. A trial court has no discretion to allow the second action to proceed if it finds the first involves substantially the same controversy between the same parties.” (*Leadford v. Leadford* (1992) 6 Cal.App.4th 571, 574.)

Here, the divorce, support, and child custody proceedings pending in India are not pending in the same jurisdiction as this case. Abatement as a matter of right is not available.

Discretionary Abatement

Even when abatement is not mandatory, a “California judge has discretion to stay the trial in this state’s court pending the outcome of a foreign action.” (*Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32, 47-48 (*Fesbinder*)). “The pendency of the action in [a foreign country] is not a bar to the institution of another action between the same parties and for the same cause of action in the courts of California, nor was it the duty of the Superior Court to stay the action pending the determination of the earlier suit in [the foreign country], even though the entire controversy might be there disposed of. As a matter of comity, although not a matter of right, the court had power to continue the case if the circumstances warranted such action.” (*Ibid.*) “ “The reason why the pendency of an action in the courts of one sovereignty will not abate an action in the courts of another sovereignty is twofold: First, because a foreign judgment depending on foreign law may be unjust, and could not be enforced beyond the jurisdiction of the foreign court without a new suit on it as only prima facie evidence; and second, and chiefly, because the remedy in the country where the last suit is brought may be more adaptable and safe, and means for effectuating a judgment may be found in the latter and not in the former country.” ’ ” (*Ibid.*)

Federal courts have a similar policy. “The international abstention doctrine allows a court to stay or dismiss an action where parallel proceedings are pending in the court of a foreign nation. International abstention is rooted in concerns of international comity, judicial efficiency and fairness to litigants. In short, the doctrine allows a court to abstain from hearing an action if there is a first-filed foreign proceeding elsewhere.” (*Supermicro Computer Inc. v. Digitechnic* (N.D. Cal. 2001) 145 F.Supp.2d 1147, 1149, internal citations omitted.)

Here, more than the “initiatory steps” described in *Fesbinder* have taken place in another jurisdiction. The FAC and the judicially noticed court records establish that the parties are currently married and are parties to divorce, support, and child custody proceedings in India that began before this action was filed and are still pending. The FAC also alleges that the wrongdoing by Defendant supporting all causes of action in this lawsuit is “material to the matrimonial relationship and to the disbursement of funds to the parties during the dissolution proceeding.” (FAC, ¶ 23.)

California law disfavors “civil actions which are really nothing more than reruns of a family law case.” (*Neal v. Superior Court* (2001) 90 Cal.App.4th 22, 25 (*Neal*); see also *Burkle v. Burkle* (2006) 144 Cal.App.4th 387, 391 (*Burkle*).) “[F]amily law cases should not be allowed to spill over into civil law, regardless of whether the family law matter may be characterized as an action for fraud [citation], malicious prosecution [citation], or securities law violation [citation]. Almost all events in family law litigation can be reframed as civil law actions if a litigant wants to be creative with various causes of action. It is therefore incumbent on courts to examine the substance of claims, not just their nominal headings.” (*Neal, supra*, 90 Cal.App.4th at p. 25.)

The FAC does not allege that the court in India currently hearing the divorce, support, and child custody proceedings between the parties lacks the authority to consider or issue orders binding on both parties regarding the issues raised in the California lawsuit. While the Uniform Foreign-Country Money Judgments Recognition Act (UFMJRA; Code Civ. Proc., § 1713 et seq.) does not apply to judgments for divorce, support, or maintenance, “[c]omity remains the basis for recognizing foreign judgments not covered by the act, such as domestic relations judgments.” (*Manco Contracting Co. (W.L.L) v. Bezdikian* (2008) 45 Cal.4th 192, 198.)

Given the circumstances presented here, the court will exercise its discretion to sustain the demurrer on this ground and stay this action pending either: (1) the conclusion of the divorce, support, and child custody proceedings between the parties in India, or (2) the granting of a noticed motion to lift the stay supported by judicially noticeable material demonstrating that the court in India cannot exercise jurisdiction over the parties’ bank accounts and real property located in California or cannot order the parties to dispose of that property as part of the dissolution, support, and custody matters before it.

Given the decision to stay the action, the court does not reach Defendant’s remaining grounds for demurrer.

CONCLUSION

Defendant’s request for judicial notice is granted in part and denied in part.

Defendant’s demurrer to the entire FAC and each cause of action on the ground that the court lacks subject matter jurisdiction is overruled.

Defendant’s demurrer to the entire FAC and each cause of action on the ground that they are all time-barred under Code of Civil Procedure section 338 is overruled.

Defendant’s demurrer to the entire FAC and each cause of action on the ground of another action pending between the parties in India is sustained, and the case is stayed pending the conclusion of the earlier filed actions in India.

The court will hold a case status review regarding the stay on July 22, 2027, at 11:00 a.m. in Department 10.

The court will prepare the order. - oo0oo -

Calendar Line 8

Case Name: Services, Immigrant Rights & Educ. Network et al. v. Paul Joseph et al.

Case No.: 25CV480254

Plaintiffs Services, Immigrant Rights & Education Network (SIREN) and Council on American-Islamic Relations, California (CAIR-CA) sued defendants Paul Joseph, Chief of the San Jose Police Department (sued in his official capacity only); Matt Mahan, Mayor of San Jose (sued in his official capacity only); and the City of San Jose (collectively, Defendants). Plaintiffs allege that the City of San Jose Police Department's use of the City's network of Automated License Plate Readers (ALPRs) to perform retrospective searches of stored information without a warrant violates the California constitutional privacy rights of drivers within San Jose. Plaintiffs allege San Jose "blanketed its roads with nearly 500 ALPRs." They further allege that San Jose retains the information from those ALPRs for one year, allowing the San Jose Police Department and other law enforcement agencies to "query weeks or months of vehicle data with a single request." (Complaint, ¶¶ 3-4, 40-43.)

The original and still operative verified complaint was filed in November 2025. It alleges three causes of action: (1) violation of article 1, section 13 of the California Constitution; (2) violation of article 1, section 1 of the California Constitution; and (3) a taxpayer action under Code of Civil Procedure section 526a. There are no exhibits attached to the complaint.

At issue is Defendants' demurrer to the complaint, opposed by Plaintiffs. The court will sustain the demurrer without leave to amend because it is bound by the appellate court's decision in *People v. Cartwright* (2024) 99 Cal.App.5th 98, 105 (*Cartwright*).

REQUEST FOR JUDICIAL NOTICE

"Judicial notice may not be taken of any matter unless authorized or required by law." (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to "[furnish] the court with sufficient information to enable it to take judicial notice of the matter."

Defendants have submitted a request for judicial notice of five purported facts in support of their demurrer. The facts relate to: (1) modes of transit in San Jose; (2) the prevalence of camera use to record vehicles; (3) the total mileage of streets in San Jose; (4) the number of traffic signals in San Jose; and (5) the number of stop-signed intersections. Defendants assert that fact 1 can be noticed "pursuant to Evidence Code sections 451, 452, and/or 453," and that facts 2-5 can be noticed "pursuant to Evidence Code sections 452 and 453." (Request at p. 2:19-21.) No more specific basis for taking notice of any of the facts is described.

The request is denied. To the extent the request generally references Evidence Code section 452, subdivision (h), that subdivision does not apply to any of the purported facts. (See *Gould v. Md. Sound Indus.* (1995) 31 Cal.App.4th 1137, 1145 ["Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to

dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter.”].) To the extent that the request generally references Evidence Code sections 451, subdivision (f) and 452, subdivision (g), Defendants have failed to show that any of the purported facts meet the criteria for either section.

LEGAL STANDARD FOR DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence when ruling on a demurrer. This includes declarations. The court has considered the declaration from Senior Deputy City Attorney Julia Van Roo only to the extent it describes the meet and confer efforts required by statute. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

Defendants demur to all three causes of action on the ground that they fail to state sufficient facts. (Notice of Demurrer and Demurrer at p. 2:4-12.)

First and Second Causes of Action: California Constitutional Right to Privacy

The complaint’s first cause of action alleges that the use of data collected by the ALPR cameras by the City of San Jose Police Department and other law enforcement agencies without a warrant violates article I, section 13 of the California Constitution. (See complaint at ¶¶ 66-67.) The second cause of action alleges that the same activity violates article I, section 1 of the California Constitution. (*Id.*, ¶¶ 76-78.)

“Article I, section 1 of the California Constitution provides: ‘All people are by nature free and independent and have inalienable rights. Among these are enjoying and defending life and liberty, acquiring, possessing, and protecting property, and pursuing and obtaining safety, happiness, and privacy.’” (*Hill v. Nat’l Collegiate Ath. Ass’n* (1994) 7 Cal.4th 1, 15 (*Hill*).) The elements of invasion of the state constitutional right of privacy are: (1) a specific, legally protected privacy interest; (2) a reasonable expectation of privacy on the plaintiff’s part; and (3) a serious invasion of that privacy interest. (*Id.* at pp. 39-40.)

Legally protected privacy interests are “generally of two classes: (1) interests in precluding the dissemination or misuse of sensitive and confidential information (‘informational privacy’); and (2) interests in making intimate personal decisions or conducting personal activities without observation, intrusion, or interference (‘autonomy privacy’).” (*Hill, supra*, 7 Cal.4th at p. 35.)

“A ‘reasonable’ expectation of privacy is an objective entitlement founded on broadly based and widely accepted community norms.” (*Id.* at p. 37.) Circumstances, customs, and practices can create or inhibit the reasonable expectations of privacy. (*Hill, supra*, 7 Cal.4th at p. 35.) Whether the intrusion is voluntary is also a factor to be considered. (*Ibid.*)

“Actionable invasions of privacy must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right. Thus, the extent and gravity of the invasion is an indispensable consideration in assessing an alleged invasion of privacy.” (*Hill, supra*, 7 Cal.4th at p. 37.)

Article 1, section 13 of the California Constitution states that “[t]he right of the people to be secure in their persons, houses, papers, and effects against unreasonable seizures and searches may not be violated; and a warrant may not issue except on probable cause, supported by oath or affirmation, particularly describing the place to be searched and the persons and things to be seized.” The test for determining if an illegal search has occurred under article 1, section 13 is whether a person has a reasonable expectation of privacy under the circumstances and, if so, whether that expectation was violated by an unreasonable government intrusion. (*People v. Williams* (1982) 128 Cal.App.3d 981, 986 [citing cases].)

The appellate court in *Cartwright* considered a similar privacy question in a different procedural context—whether using streetlight camera footage during a police investigation was a search that required a warrant. (*Cartwright, supra*, 99 Cal.App.5th at p. 101.) The streetlight cameras at issue in *Cartwright* were operated by the City of San Diego. The cameras were “fixed position and located throughout downtown San Diego and other parts of the city.” They captured “‘environmental data, like temperature, humidity, pressure, ... traffic data, like car speeds, car counts, pedestrian data, bicycle data, and even video data.’” They created “high quality wide lens footage.” They captured “only the ‘public right of way.’” Footage was “stored on each camera’s hard drive for five days; if it is not retrieved within five days, the camera records over the footage.” (*Ibid.*)

The *Cartwright* court determined that reviewing the streetlight camera footage did not require a warrant because “Cartwright did not have an objectively reasonable expectation of privacy when he traversed a public right-of-way in downtown San Diego in the middle of a business day.” (*Cartwright, supra*, 99 Cal.App.5th at p. 102.) The *Cartwright* court distinguished the City of San Diego’s use of fixed streetlight cameras focused on the public right of way (and searches of data collected by such cameras) from the decisions in *Carpenter v. United States* (2018) 585 U.S. 310 (*Carpenter*) [cellular phone location data] and *Leaders of a Beautiful Struggle v. Baltimore Police Dept.* (4th Cir. 2021) 2 F.4th 330 (*Beautiful Struggle*) [aerial photography system integrated with street cameras, gunshot detectors, and license plate readers], the two decisions Plaintiffs rely on heavily in their opposition to the demurrer.

Neither *Carpenter* nor *Beautiful Struggle* can be read to indicate that the review of footage from the streetlight cameras in this case amounts to a search subject to a

warrant requirement. The United States Supreme Court in *Carpenter* specifically indicated that its holding was intended to be narrow and did not extend to “conventional surveillance techniques and tools, such as security cameras.” (*Carpenter, supra*, 585 U.S. at p. 316 [138 S.Ct. at 2220].) Recordings from cameras, such as the ones that captured Cartwright’s movements in the downtown urban environment in the middle of a weekday, do not rise to the same “unique nature of cell phone location records.” (*Carpenter*, at p. 309 [138 S.Ct. at p. 2217].) Indeed, “[a] person traveling ... on public thoroughfares has no reasonable expectation of privacy in his movements from one place to another.” (*Id.* at p. 306 [138 S.Ct. at p. 2215], quoting *United States v. Knotts* (1983) 460 U.S. 276, 281, 282 [75 L. Ed. 2d 55, 103 S. Ct. 1081].) Indeed, as the court in *Beautiful Struggle* acknowledged, “People understand that they may be filmed by security cameras on city streets.” (*Beautiful Struggle, supra*, 2 F.4th at p. 345.) This is effectively the same principle Cartwright now argues against.

(*Cartwright, supra*, 99 Cal.App.5th at p. 103.)

This court is bound by *Cartwright*. (*Sarti v. Salt Creek Ltd.* (2008) 167 Cal.App.4th 1187, 1193 [decisions of every Court of Appeal are binding on all superior courts].) Applying that authority, Plaintiffs’ first and second causes of action do not state sufficient facts because there is no reasonable expectation of privacy in license plate data collected from cameras directed at public streets.

Plaintiffs attempt to distinguish *Cartwright* by arguing that Defendants’ system here is “far more privacy invasive” than the “small number of conventional security cameras” Defendants argue were at issue in *Cartwright*. (Opposition, p. 12:23-28.) While the court acknowledges the scope of Defendants’ system is broader than that at issue in *Cartwright*, the court concludes that this case is no so factually distinguishable from *Cartwright* as to allow the court to disregard that binding appellate authority. The court also finds this case more factually similar to *Cartwright* than to *Carpenter* or *Beautiful Struggle*. Recording automobile license plate information from fixed cameras on public streets over time is less invasive than the continuous cell cite location data at issue in *Carpenter*; and the *Carpenter* court made clear its “decision is a narrow one” that did not “call into question conventional surveillance techniques and tools, such as security cameras.” (*Carpenter, supra*, 585 U.S. at p. 316.) Recording automobile license plate information from fixed cameras on public streets over time is also less invasive than the citywide integrated system in *Beautiful Struggle* that allowed law enforcement to “captur[e] everyone’s movements outside during the daytime for 45 days.” (*Beautiful Struggle, supra*, 2 F.4th at pp. 334, 345 [“any single [Aerial Investigation Research] image—captured once per second—includes around 32 square miles of Baltimore and can be magnified to a point where people and cars are individually visible, but only as blurred dots or blobs”].) Unless and until another appellate court issues a published decision taking a different position on the use of cameras capturing movement on public streets, this court must follow *Cartwright*.

Defendants’ demurrer to the first and second causes of action on the ground that they fail to state sufficient facts is sustained.

Third Cause of Action: Code of Civil Procedure section 526a

“Under Code of Civil Procedure section 526a, a taxpayer may challenge wasteful or illegal government action that otherwise would go unchallenged because of standing requirements.” (*Coshow v. City of Escondido* (2005) 132 Cal.App.4th 687, 714 (*Coshow*).) “To state a claim, the taxpayer must allege specific facts and reasons for the belief the expenditure of public funds sought to be enjoined is illegal. ‘General allegations, innuendo, and legal conclusions are not sufficient.’ ” (*Ibid.*; see also *Humane Society of the United States v. State Bd. of Equalization* (2007) 152 Cal.App.4th 349, 355 & 361 (*Humane Society*).)

A Code of Civil Procedure “section 526a action ‘will not lie where the challenged governmental conduct is legal.’ ” (*Humane Society, supra*, 152 Cal.App.4th at p. 361, citing *Coshow, supra*, 132 Cal.App.4th at p. 714.) When the plaintiff fails to allege sufficient facts to show that the challenged government conduct is illegal, the trial court may properly sustain a demurrer to the plaintiff’s taxpayer claim without leave to amend. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 24; *Taxpayers for Improving Public Safety v. Schwarzenegger* (2009) 172 Cal.App.4th 749, 769 [declaratory relief claim].)

The complaint’s third cause of action depends entirely on the first two. (Complaint at ¶¶ 83-84.) Because those causes of action are foreclosed by *Cartwright*, the third cause of action likewise fails to state sufficient facts. The demurrer to the third cause of action is sustained.

Leave to Amend

A plaintiff bears the burden of demonstrating that a defect identified on demurrer could be cured through amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califa Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

Plaintiffs do not meet this burden. The opposition does not request leave to amend, much less explain how any of the causes of action could be amended. Because the court finds that *Cartwright* forecloses all causes of action, leave to amend is denied. (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408 [“If as a matter of law there is no possible liability, denial of leave to amend is proper.”].)

CONCLUSION

Defendants’ request for judicial notice is denied.

Defendants’ demurrer to all three causes of action in the complaint is sustained without leave to amend.

The court will prepare the order.

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